

25LBCV00917 25LBCV00917

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-06-23

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LB%20%2CS27%2C06%2F23%2F2026

Source SHA-256: 5190b6bdc7fb8cbfaf4cda56978570fed75367974764f5ef3e819bcf5924a4b8

Case Number: 25LBCV00917 Hearing Date: June 23, 2026 Dept: S27

Background Facts

Plaintiffs, Amber and Brett Alford

filed this action against Defendant, American Honda Motor Co., Inc. for violations

of the Song-Beverly Act, breach of implied warranty, and fraudulent inducement

– concealment.

Motion for Judgment

on the Pleadings

a.

Initial Note

Defendant's reply papers were due

on or before 6/15/26. The Court has not

received timely reply papers and will not consider late-filed reply papers.

b.

Song-Beverly Specificity

The Court considered the issue of

whether Song-Beverly claims must be pled with specificity and what must be pled

in its 2/06/25 ruling in 24LBCV01567. The

Court notes that Plaintiffs herein neither identify a defect in the automobile

nor identify any facts supporting their delayed discovery claims. See ¶11, merely indicating various classes of

defects exist, and ¶¶23-25, containing highly vague allegations concerning

tolling of the statute of limitations.

Plaintiffs must cure these defects

by way of an amended complaint.

c. Implied

Warranty

The statute

of limitations on a claim for breach of an implied warranty of merchantability

is four years. (Montoya v. Ford Motor Co., (2020) 46 Cal.App.5th 493,

495.) The claim “accrues when the breach occurs, regardless of the aggrieved

party's lack of knowledge of the breach. A breach of warranty occurs when

tender of delivery is made. . . .” (Commercial Code § 2725, subd. (2).) In

short, Section 2725 of the Commercial Code is clear: there is no

delayed-discovery rule with respect to accrual of a claim for breach of an

implied warranty. (Cardinal Health 301, Inc. v. Tyco Electronics Corp., (2008)

169 Cal. App. 4th 116, 129, 134.) If the contract expressly extends the warranty to “future performance” of the goods, then the claim accrues when the breach is discovered or should have been discovered.¿But absent such an explicit extension, accrual occurs at the time of the breach, which is the time of delivery of the goods in question.¿ (Id. at p. 129.)

¿

Plaintiffs

allege they purchased the vehicle in 2016, but they did not file suit on 2025, more than four years later. Plaintiffs

contend that¿Mexia v. Rinker Boat Co. (2009) 174¿Cal.App.4th 1297,

stands for the proposition that the statute of limitations on a claim for

breach of the implied warranty of merchantability of a consumer good is tolled

for the duration of the period of the express warranty on the good when the

good's defect is latent.¿That is not so. The Court in¿Mexia¿said flat

out that “[i]n the case of a latent defect, a product is rendered

unmerchantable, and the warranty of merchantability is breached, by the

existence of the unseen defect, not by its subsequent discovery.” (Id.

at 1304-1305.)

The motion

for judgment on the pleadings on the implied warranty cause of action is

granted without leave to amend.

d. Fraud

Defendant moves for judgment on the

pleadings on the fraud claim only based on the statute of limitations. The Court, however, has been limiting claims

for fraud based on the economic loss rule.

See, for example, 25LBCV012100.

Voluntary Settlement

Conference

The parties are reminded that there

is a voluntary settlement conference on calendar concurrently with the hearing

on the MJP. The Court asks the parties

to make arrangements to appear remotely at the VSC and hearing on the MJP.